

# HOUSE . . . . . No. 5641

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## The Commonwealth of Massachusetts

PRESENTED BY:

***Leigh Davis and Paul W. Mark***

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a temporary moratorium on large scale photovoltaic installations and battery energy storage systems (BESS) in the town of Becket.

PETITION OF:

| NAME:              | DISTRICT/ADDRESS:    | DATE ADDED:      |
|--------------------|----------------------|------------------|
| <i>Leigh Davis</i> | <i>3rd Berkshire</i> | <i>7/30/2026</i> |

# HOUSE . . . . . No. 5641

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By Representative Davis of Great Barrington and Senator Mark, a joint petition (accompanied by bill, House, No. 5641) of Leigh Davis (by vote of the town) that the town of Becket be authorized to establish a temporary moratorium on large scale photovoltaic installations and battery energy storage systems in said town. Municipalities and Regional Government. [Local Approval Received.]

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act establishing a temporary moratorium on large scale photovoltaic installations and battery energy storage systems (BESS) in the town of Becket.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Notwithstanding any general or special law to the contrary, and  
2   notwithstanding any other provision of the Zoning By-laws to the contrary, the Town is  
3   authorized to adopt and impose a temporary moratorium on the use of land or structures for  
4   Large-Scale Solar Photovoltaic Installations and BESS other than BESS accessory to individual  
5   residential use. The moratorium shall be in effect for six (6) months following its adoption or the  
6   date on which the Town adopts amendments to the Zoning By-laws concerning Large-Scale  
7   Solar Photovoltaic Installations and BESS, whichever occurs earlier. During the moratorium  
8   period, the Town shall undertake a planning process to study, review, analyze, and address what  
9   revisions to the Zoning By-laws relative to Large-Scale Solar Photovoltaic Installations and  
10   BESS are needed or desirable to allow for and regulate such use consistent with applicable law  
11   while protecting the Town's ecological resources and furthering its planning goals.

SECTION 2. This act shall take effect upon its passage.